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8 **UNITED STATES DISTRICT COURT**
9 **CENTRAL DISTRICT OF CALIFORNIA**
10 **Western Division**
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12 SECURITIES AND EXCHANGE
13 COMMISSION,

14 Plaintiff,

15 vs.

16 LFS FUNDING LIMITED
17 PARTNERSHIP, a private Wyoming
18 Limited Partnership; STEPHEN
19 MICHAEL THOMPSON; STEVEN
20 ROBERT COMISAR; DALE JAY
21 ENGELHARDT; and ROSS
22 GREGORY ERSKINE,

23 Defendants,

24 and

25 BROOKDALE CONSULTING LLC, a
26 private California Limited Liability
27 Company; EXECUTIVE
28 PERFORMANCE GROUP, INC., a
private California corporation;
MERIDIAN POINT, LLC, a private
Nevada Limited Liability Company;
and PERSONAL GROUP, LLC, a
private Nevada Limited Liability
Company,

Relief Defendants.

Case No. 2:21-cv-04211-HDV-MAR

**[PROPOSED] FINAL JUDGMENT AS
TO DEFENDANT ROSS GREGORY
ERSKINE AND RELIEF
DEFENDANTS MERIDIAN POINT,
LLC, AND PERSONAL GROUP, LLC**

NOTE CHANGES MADE BY COURT

1 Having previously granted the Securities and Exchange Commission's (SEC)
2 Motion for Partial Summary Judgment [Dkt. 129], the Court hereby GRANTS the
3 SEC's Motion for Remedies and Entry of Final Judgment. The Court further orders
4 as follows:

5 **I.**

6 IT IS HEREBY ORDERED, ADJUDGED, AND DECREED that Defendant
7 Ross Gregory Erskine ("Defendant") violated and is permanently restrained and
8 enjoined from violating, directly or indirectly, Section 10(b) of the Securities
9 Exchange Act of 1934 (the "Exchange Act") [15 U.S.C. § 78j(b)] and Rule 10b-5
10 promulgated thereunder [17 C.F.R. § 240.10b-5], by using any means or
11 instrumentality of interstate commerce, or of the mails, or of any facility of any
12 national securities exchange, in connection with the purchase or sale of any security:

- 13 (a) to employ any device, scheme, or artifice to defraud;
14 (b) to make any untrue statement of a material fact or to omit to state a
15 material fact necessary in order to make the statements made, in the light
16 of the circumstances under which they were made, not misleading; or
17 (c) to engage in any act, practice, or course of business which operates or
18 would operate as a fraud or deceit upon any person.

19 IT IS FURTHER ORDERED, ADJUDGED, AND DECREED that, as
20 provided in Federal Rule of Civil Procedure 65(d)(2), the foregoing paragraph also
21 binds the following who receive actual notice of this Final Judgment by personal
22 service or otherwise: (a) Defendant's officers, agents, servants, employees, and
23 attorneys; and (b) other persons in active concert or participation with Defendant or
24 with anyone described in (a).

25 **II.**

26 IT IS HEREBY FURTHER ORDERED, ADJUDGED, AND DECREED that
27 Defendant violated and is permanently restrained and enjoined from violating Section
28 17(a) of the Securities Act of 1933 (the "Securities Act") [15 U.S.C. § 77q(a)] in the

1 offer or sale of any security by the use of any means or instruments of transportation
2 or communication in interstate commerce or by use of the mails, directly or
3 indirectly:

- 4 (a) to employ any device, scheme, or artifice to defraud;
- 5 (b) to obtain money or property by means of any untrue statement of a
6 material fact or any omission of a material fact necessary in order to
7 make the statements made, in light of the circumstances under which
8 they were made, not misleading; or
- 9 (c) to engage in any transaction, practice, or course of business which
10 operates or would operate as a fraud or deceit upon the purchaser.

11 IT IS FURTHER ORDERED, ADJUDGED, AND DECREED that, as
12 provided in Federal Rule of Civil Procedure 65(d)(2), the foregoing paragraph also
13 binds the following who receive actual notice of this Final Judgment by personal
14 service or otherwise: (a) Defendant's officers, agents, servants, employees, and
15 attorneys; and (b) other persons in active concert or participation with Defendant or
16 with anyone described in (a).

17 III.

18 IT IS HEREBY FURTHER ORDERED, ADJUDGED, AND DECREED that
19 Defendant violated and is permanently restrained and enjoined from violating Section
20 5 of the Securities Act [15 U.S.C. § 77e] by, directly or indirectly, in the absence of
21 any applicable exemption:

- 22 (a) Unless a registration statement is in effect as to a security, making use of
23 any means or instruments of transportation or communication in
24 interstate commerce or of the mails to sell such security through the use
25 or medium of any prospectus or otherwise;
- 26 (b) Unless a registration statement is in effect as to a security, carrying or
27 causing to be carried through the mails or in interstate commerce, by any
28 means or instruments of transportation, any such security for the purpose

of sale or for delivery after sale; or

- (c) Making use of any means or instruments of transportation or communication in interstate commerce or of the mails to offer to sell or offer to buy through the use or medium of any prospectus or otherwise any security, unless a registration statement has been filed with the Commission as to such security, or while the registration statement is the subject of a refusal order or stop order or (prior to the effective date of the registration statement) any public proceeding or examination under Section 8 of the Securities Act [15 U.S.C. § 77h].

IT IS FURTHER ORDERED, ADJUDGED, AND DECREED that, as provided in Federal Rule of Civil Procedure 65(d)(2), the foregoing paragraph also binds the following who receive actual notice of this Judgment by personal service or otherwise: (a) Defendant's officers, agents, servants, employees, and attorneys; and (b) other persons in active concert or participation with Defendant or with anyone described in (a).

VI.

IT IS HEREBY FURTHER ORDERED, ADJUDGED, AND DECREED that Defendant violated and is permanently restrained and enjoined from violating, directly or indirectly, Section 15(a) of the Exchange Act [15 U.S.C. § 78o(a)], which makes it unlawful for any broker or dealer which is either a person other than a natural person or a natural person, to make use of the mails or any means or instrumentality of interstate commerce to effect any transactions in, or to induce or attempt to induce the purchase or sale of, any security (other than an exempted security or commercial paper, bankers' acceptances, or commercial bills) unless such broker or dealer is registered in accordance with Section 15(b) of the Exchange Act [15 U.S.C. § 78o(b)].

IT IS FURTHER ORDERED, ADJUDGED, AND DECREED that, as provided in Federal Rule of Civil Procedure 65(d)(2), the foregoing paragraph also

1 binds the following who receive actual notice of this Judgment by personal service or
2 otherwise: (a) Defendant's officers, agents, servants, employees, and attorneys; and
3 (b) other persons in active concert or participation with Defendant or with anyone
4 described in (a).

5 IT IS HEREBY FURTHER ORDERED, ADJUDGED, AND DECREED that
6 Defendant is permanently prohibited from, directly or indirectly, including, but not
7 limited to, through any entity owned or controlled by him, soliciting any person or
8 entity to purchase or sell any security.

9 V.

10 IT IS HEREBY FURTHER ORDERED, ADJUDGED, AND DECREED that
11 Defendant is liable for disgorgement of \$60,625, representing unlawful compensation
12 he received, jointly and severally with Relief Defendants Meridian Point, LLC, and
13 Personal Group, LLC, together with prejudgment interest in the amount of
14 \$15,450.03, and a civil penalty in the amount of \$100,000, pursuant to Section 20(d)
15 of the Securities Act, 15 U.S.C. § 77t(d), and Section 21(d)(3) of the Exchange Act,
16 15 U.S.C. § 78u(d)(3). Defendant shall satisfy this obligation by paying \$176,075.03
17 to the Securities and Exchange Commission within 30 days after entry of this Final
18 Judgment.

19 Defendant may transmit payment electronically to the Commission, which will
20 provide detailed ACH transfer/Fedwire instructions upon request. Payment may also
21 be made directly from a bank account via Pay.gov through the SEC website at
22 <http://www.sec.gov/about/offices/ofm.htm>. Defendant may also pay by certified
23 check, bank cashier's check, or United States postal money order payable to the
24 Securities and Exchange Commission, which shall be delivered or mailed to

25 Enterprise Services Center
26 Accounts Receivable Branch
27 6500 South MacArthur Boulevard
28 Oklahoma City, OK 73169

1 and shall be accompanied by a letter identifying the case title, civil action number,
2 and name of this Court; Ross Gregory Erskine as a defendant in this action; and
3 specifying that payment is made pursuant to this Final Judgment.

4 Defendant shall simultaneously transmit photocopies of evidence of payment
5 and case identifying information to the Commission's counsel in this action. By
6 making this payment, Defendant relinquishes all legal and equitable right, title, and
7 interest in such funds and no part of the funds shall be returned to Defendant.

8 The Commission may enforce the Court's judgment for disgorgement and
9 prejudgment interest by using all collection procedures authorized by law, including,
10 but not limited to, moving for civil contempt at any time after 30 days following entry
11 of this Final Judgment.

12 The Commission may enforce the Court's judgment for penalties by the use of
13 all collection procedures authorized by law, including the Federal Debt Collection
14 Procedures Act, 28 U.S.C. § 3001 *et seq.*, and moving for civil contempt for the
15 violation of any Court orders issued in this action. Defendant shall pay post
16 judgment interest on any amounts due after 30 days of the entry of this Final
17 Judgment pursuant to 28 U.S.C. § 1961. The Commission shall hold the funds,
18 together with any interest and income earned thereon (collectively, the "Fund"),
19 pending further order of the Court.

20 The Commission may propose a plan to distribute the Fund subject to the
21 Court's approval. Such a plan may provide that the Fund shall be distributed
22 pursuant to the Fair Fund provisions of Section 308(a) of the Sarbanes-Oxley Act of
23 2002. The Court shall retain jurisdiction over the administration of any distribution
24 of the Fund and the Fund may only be disbursed pursuant to an Order of the Court.

25 Regardless of whether any such Fair Fund distribution is made, amounts
26 ordered to be paid as civil penalties pursuant to this Judgment shall be treated as
27 penalties paid to the government for all purposes, including all tax purposes. To
28 preserve the deterrent effect of the civil penalty, Defendant shall not, after offset or

1 reduction of any award of compensatory damages in any Related Investor Action
2 based on Defendant's payment of disgorgement in this action, argue that he is entitled
3 to, nor shall he further benefit by, offset or reduction of such compensatory damages
4 award by the amount of any part of Defendant's payment of a civil penalty in this
5 action ("Penalty Offset"). If the court in any Related Investor Action grants such a
6 Penalty Offset, Defendant shall, within 30 days after entry of a final order granting
7 the Penalty Offset, notify the Commission's counsel in this action and pay the amount
8 of the Penalty Offset to the United States Treasury or to a Fair Fund, as the
9 Commission directs. Such a payment shall not be deemed an additional civil penalty
10 and shall not be deemed to change the amount of the civil penalty imposed in this
11 Judgment. For purposes of this paragraph, a "Related Investor Action" means a
12 private damages action brought against Defendant by or on behalf of one or more
13 investors based on substantially the same facts as alleged in the Complaint in this
14 action.

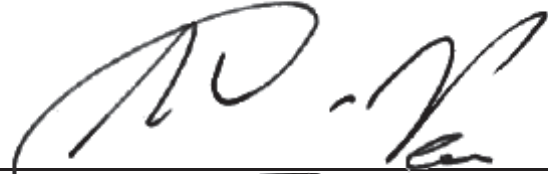
15 **VI.**

16 IT IS FURTHER ORDERED, ADJUDGED, AND DECREED that, solely for
17 purposes of exceptions to discharge set forth in Section 523 of the Bankruptcy Code,
18 11 U.S.C. § 523, the allegations in the complaint are true and admitted by Defendant,
19 and further, any debt for disgorgement, prejudgment interest, civil penalty or other
20 amounts due by Defendant under this Judgment or any other judgment, order, consent
21 order, decree or settlement agreement entered in connection with this proceeding, is a
22 debt for the violation by Defendant of the federal securities laws or any regulation or
23 order issued under such laws, as set forth in Section 523(a)(19) of the Bankruptcy
24 Code, 11 U.S.C. § 523(a)(19).

VII.

IT IS FURTHER ORDERED, ADJUDGED, AND DECREED that this Court shall retain jurisdiction of this matter for the purposes of enforcing the terms of this Final Judgment.

Dated: May 20, 2026

A handwritten signature in black ink, appearing to read "H. D. Vera", is written over a horizontal line.

THE HON. HERNAN D. VERA
UNITED STATES DISTRICT JUDGE